

Calendar Line 1

Case Name: *Spencer v. National Builders & Services Inc.*

Case No.: 23CV409763

This is a class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Sinuhe Nahkizi Spencer alleges defendant National Builders & Services Inc. committed various wage and hour violations.

Before the Court is Plaintiff’s motion to compel responses, which is opposed by Defendant. For reasons discussed below, Plaintiff’s motion to compel is MOOT and his request for sanctions is GRANTED.

I. BACKGROUND

According to the operative first amended complaint (“FAC”), Defendant failed to: pay all minimum wages; pay all overtime wages; provide compliant rest periods or compensation in lieu thereof; provide compliant meal periods or compensation in lieu thereof; maintain accurate employment records; pay wages timely during employment and at separation; reimburse for necessary business expenses; provide accurate itemized wage statements.

Based on the foregoing, Plaintiff initiated this action on January 10, 2023, with the filing of the complaint, and on March 16, 2023, he filed the operative FAC, which asserts the following causes of action: (1) failure to pay all minimum wages; (2) failure to pay all overtime wages; (3) failure to provide rest periods and pay missed rest period premiums; (4) failure to provide meal periods and pay missed meal period premiums; (5) failure to maintain accurate employment records; (6) failure to pay wages timely during employment; (7) failure to pay all wages earned and unpaid at separation; (8) failure to indemnify all necessary business expenditures; (9) failure to furnish accurate itemized wage statements; (10) violations of California’s Unfair Competition Law; and (11) civil penalties under PAGA.

On June 1, 2026, the Court issued its order regarding Plaintiff’s motion to compel responses to his special interrogatories.

II. UNTIMELY OPPOSITION

Code of Civil Procedure section 1005, subdivision (b), requires all opposing papers to be filed and served at least nine court days before the hearing. No paper may be rejected for filing on the ground that it was untimely submitted for filing. (Cal. Rules of Court, Rule 3.1300(d).) If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must indicate. (*Ibid.*) “A trial court has broad discretion to under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

Here, the hearing for the instant motion is on September 24, 2026. Thus, Defendant was required to file the opposition by September 11, 2026 in order to be timely. However, the opposition was not filed until September 14, 2026, which is eight court days before the hearing. The Court does not condone Defendant’s actions, however, it does not appear that

Plaintiff has suffered prejudice as a result of the untimely opposition and courts have a strong policy favoring the disposition of cases on the merits rather than on procedural grounds (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806), thus, the Court will consider the substantive merits of the opposition. (See also *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29, 32 [cognizant of the strong policy favoring the disposition of cases on their merits...judges frequently consider documents which have been untimely filed.].) Defense counsel is admonished to comply with all applicable deadlines in the future as the failure to do so may lead to a different outcome.

The Court will now turn to the merits of the motion.

III. LEGAL STANDARD

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it fails to serve a timely response, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., §2031.300, subd. (b).) Even if objections do not need to be verified, objections will be waived if the responding party “fails to file any response within the statutory time period.” (*Food 4 Less Supermarkets, Inc. v. Superior Court* (1995) 40 Cal.App.4th 651, 658.) The burden is on the responding party to justify any objections or failure to fully answer. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 (*Coy*).)

IV. DISCUSSION

A. Request for Production

Plaintiff moves to compel responses to his request for production, set one (“RFP Set One”).

On June 27, 2024, the Court partially lifted the discovery stay to permit discovery regarding class certification. (Declaration of Maria Burciaga (“Burciaga Decl.”), ¶ 4.) On September 23, 2024, Plaintiff served RFP Set One. (*Ibid.*) Defendant’s responses were due on October 25, 2024, however, it failed to provide any responses on or before the due date. (Burciaga Decl., ¶¶ 4-5.) On October 30, 2024, the parties met and conferred about Defendant’s failure to provide timely responses, and they agreed to participate in mediation. (Burciaga Decl., ¶¶ 5-6.) The parties also agreed to stay formal discovery for 30 days (until May 8, 2025) and to exchange informal discovery—Defendant produced a sample of the requested data prior to mediation, which consisted of handwritten timesheets. (Burciaga Decl., ¶ 6.) The mediation did not result in a settlement and on August 21, 2025, the parties met and conferred about Plaintiff’s intent to resume formal discovery. (Burciaga Decl., ¶ 7.) Additionally, Plaintiff’s counsel requested complete responses without objections by August 28, 2025, however, Defendant failed to provide any responses. (*Ibid.*)

On October 28, 2025, the parties attended an informal discovery conference (“IDC”), but they were unable to resolve the outstanding dispute. (Burciaga Decl., ¶ 8.) On December 16, 2025, defense counsel emailed Plaintiff’s counsel acknowledging that supplemental responses were outstanding and requested an additional three weeks, however, as of the date of Burciaga’s declaration [April 8, 2026], Defendant had not served verified responses to the RFPs. (Burciaga Decl., ¶¶ 9-10.)

Plaintiff seeks information relevant to Plaintiff's class and PAGA representative action claims such as details regarding job duties, information relating to the payment of wages, timekeeping policies, reimbursement of business expenses, and meal and rest periods, the associated premiums, and complaints by class members relating to the claims. (Plaintiff's Memorandum of Points and Authorities ("MPA"), p. 5:10-14.)

In opposition, Defendant states that defense counsel Jacob Mojarro ("Mojarro") inherited the instant matter after prior defense counsel Anne-Leith Matlock abruptly departed their law firm. (Declaration of Mojarro ("Mojarro Decl."), ¶¶ 2-3.) Based on his review of the file, Mojarro was aware that the parties participated in mediation in April 2025 and he understood that the parties had agreed to an informal exchange of documents for the purpose of facilitating a return to mediation. (Mojarro Decl., ¶¶ 4-6.) In March 2025, Defendant produced 1,275 pages of documents in connection with the parties' informal discovery agreement. (Mojarro Decl., ¶ 6.) Mojarro was not initially aware that Plaintiff expected separate, formal written responses to the RFPs in addition to the document production. (*Ibid.*)

On December 16, 2025, Mojarro sent an email to Plaintiff's counsel acknowledging that supplemental discovery responses were outstanding and he requested an additional three weeks to provide them, however, he was unable to provide them due to exigent circumstances. (Mojarro Decl., ¶ 7.) He did not receive any follow-up communication from Plaintiff's counsel prior to the instant motion. (*Ibid.*)

On September 12, 2026, Mojarro served verified responses to RFP Set One, without objection. (Mojarro Decl., ¶ 9.) He also provided a supplemental production consisting of information regarding employee payroll records, earnings information, job titles, and contact information for class members. (Mojarro Decl., ¶ 10.) As Defendant has provided substantive discovery responses without objection, there is no basis for the Court to compel responses. Plaintiff's motion to compel further responses is MOOT.

B. Sanctions

Plaintiff requests sanctions in the amount of \$1,686.80.

If a party to whom a demand for inspection, copying, testing, or sampling is made fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc section 2031.300, subd. (b).) "The court shall impose a monetary sanction... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust..." (Code Civ. Proc., § 2031.300, subd. (c).)].) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 (*Doe*).)

As the Court noted in its order regarding the special interrogatories, there is no information or explanation regarding the failure to respond by prior defense counsel. The case was handed off suddenly to Mojarro, who reviewed the discovery at that time. Nevertheless, Mojarro took over the case in September 2025, he represented to Plaintiff that he would

provide responses by early January 2026, and he fails to offer any explanation for the delay since the December 16, 2025 communication or efforts to produce from that time until the production in September 2026. Thus, the Court cannot conclude that Mojarro acted with substantial justification in the delay to produce responses. Plaintiff's counsel provides a billing rate of \$581 per hour and states she spent 2.8 hours researching and drafting the instant motion. (See Burciaga Decl., ¶ 11.) The Court finds this amount is reasonable. Thus, the request for sanction is GRANTED.

V. CONCLUSION

Plaintiff's motion to compel response is MOOT and the request for sanctions is GRANTED.

The Court will prepare the order.

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Calendar Line 2

Case Name: *Gonzalez v. Frontline Asset Strategies, LLC*
Case No.: 23CV412059

This is a consumer class action brought pursuant to the California Rosenthal Fair Debt Collection Practices Act (“RFDCPA”). Plaintiff Connie Gonzalez, a senior citizen, alleges that defendants Frontline Assets Strategies, LLC (“Frontline”) and Radius Global Solutions LLC (“Radius”)(collectively, “Defendants”) have a routine practice of sending initial written communications which fail to provide the notice required by Civil Code section 1788.14.5, subd. (e)(1) in an attempt to collect time-barred consumer debts.

Before the Court is Plaintiff’s motion for leave to amend, which is unopposed.¹ For reasons discussed below, the Court GRANTS Plaintiff’s motion.

I. BACKGROUND

According to the allegations of the Complaint, Plaintiff incurred a financial obligation in the form of a consumer credit account allegedly owned by Dish Network, LLC (“Dish”). (Complaint, ¶ 13.) The debt was incurred for personal, family, or household purposes. (*Ibid.*) Thereafter, Plaintiff was unable to pay the debt and defaulted. (Complaint, ¶ 14.)

Subsequently, Dish hired or contracted Defendants to collect the debt from Plaintiff on its behalf. (Complaint, ¶ 16.) On November 14, 2022, Defendants sent a collection letter to Plaintiff to collect the debt. (Complaint, ¶¶ 16, 18.) The letter was the first written communication from Defendants to Plaintiff in connection with the debt and did not include the notice required by Civil Code section 1788.14.5, subdivision (e)(1). (Complaint, ¶¶ 19-20.) Specifically, the letter failed to provide the true name of the debt collector. (Complaint, ¶ 20.) On information and belief, Plaintiff alleges that Defendants had knowledge that their conduct was directed towards a senior citizen. (Complaint, ¶ 21.)

Based on the foregoing, on March 9, 2023, Plaintiff initiated this action with the filing of the Complaint, which asserts a single cause of action for violation of the RFDCPA. On January 24, 2026, the Court issued its order which denied Radius’ motion for judgment on the pleadings.

II. MOTION FOR LEAVE TO AMEND

Plaintiff moves for leave to file her first amended complaint (“FAC”).

A. Legal Standard

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may

¹ Radius filed a response but explicitly states that it does not oppose the motion.